COVENANT UNDER SECTION 220(2)

RESOURCE MANAGEMENT ACT 1991

INTRODUCTION

A Raymond Charles and Desma Elizabeth Nicklin ("Covenantor") are the registered proprietors of the parcels of land described in the First Schedule of this Covenant ("land").

B The land forms part of a subdivision for which a subdivisional consent from THE **AUCKLAND COUNCIL** ("Council") has been applied for.

C The Council has agreed to issue the subdivisional consent on the condition that the Covenantor enters into and executes this Covenant.

COVENANTS

THE COVENANTOR COVENANTS WITH THE COUNCIL as follows:

1 **THAT** the Covenantor shall not, without having obtained the prior consent of the Council at the cost of the Covenantor, transfer, lease or otherwise dispose of any of the parcels of land described in the Second Schedule of this Covenant except in conjunction with the others.

2 **THAT** the Covenantor shall pay the cost of preparation and registration of this deed and any other costs incurred by the Council in relation to this Covenant.

3 **THAT** this deed unless the context otherwise requires:

3.1 The expression "Covenantor" and "Council" shall include their respective successors in title and, in respect of the Covenantor, the permitted assigns.

3.2 Words importing the singular number shall include the plural and vice versa.

3.3 All covenants expressed in this deed shall be join and several.

4 **THAT** this Covenant may be varied or cancelled or renewed at any time by agreement between the parities, at the cost of the Covenantor.

DATED this..... day of 2020

FIRST SCHEDULE

1. All that parcel of land containing 57.4262 ha more or less being Lot 8 DP 208981 RT NA137A/506 Ltd (North Auckland Registry)

2 All that parcel of land containing Allotments 32 & 35 and Part Allotments 31 & 32 Parish of Puhoi RT NA2100/21 Pt Ltd (North Auckland Registry)

3 All that parcel of land containing 21.6507 ha more or less being Allotment 54A Parish of Puhoi RT NA31C/965 (North Auckland Registry)

4 All that parcel of land containing 24.1140 ha more or less being Lot 1 DP 179794 RT NA105B/748 (North Auckland Registry)

5 All that parcel of land containing 37.0692 ha more or less being Part Allotment 36 Parish of Puhoi RT NA757/204 Ltd (North Auckland Registry)

SECOND SCHEDULE

1 All that parcel of land containing 54.3132 ha more or less being Lot 6 DP 541977 RT 911735 Ltd (North Auckland Registry)

2 All that parcel of land containing Allotments 32 & 35 and Part Allotments 31 & 32 Parish of Puhoi RT NA2100/21 Pt Ltd (North Auckland Registry)

3 All that parcel of land containing 21.6507 ha more or less being Allotment 54A Parish of Puhoi RT NA31C/965 (North Auckland Registry)

4 All that parcel of land containing 24.1140 ha more or less being Lot 1 DP 179794 RT NA105B/748 (North Auckland Registry)

5 All that parcel of land containing 37.0692 ha more or less being Part Allotment 36 Parish of Puhoi RT NA757/204 Ltd (North Auckland Registry)

EXECUTION BY THE PARTIES

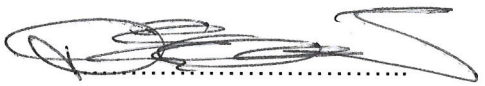
SIGNED by Raymond Charles Nicklin and Desma Elizabeth Nicklin as Covenantor in the presence of:



.....

Raymond Charles Nicklin

Authorised signatory



.....

Desma Elizabeth Nicklin

Authorised signatory

Witness
(If other than two directors to sign)



.....
Signature of witness

GRAEME HARRIS
.....
Full name of witness

4/1648 HIBISCUS COAST HIGHWAY
.....
Address of witness WHITIANGA BEACH.

SIGNED FOR AUCKLAND COUNCIL AS AUTHORISED OFFICER.

.....
Authorised Officer